

EXHIBIT B

SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX

ORIGINAL

-----X
EDWIN CARTAGENA,

Index No.:

Plaintiff,

Date Purchased:

-against-

SUMMONSTHE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, THE NEW YORK
CITY DEPARTMENT OF CORRECTION, POLICE
OFFICER ORTIZ (first name unknown), POLICE
OFFICERS JOHN DOE "1" and JOHN DOE "2",
CORRECTION OFFICER CAPTAIN NORTON
(first name unknown), CORRECTION OFFICER
T. JONES and CORRECTION OFFICERS JOHN
DOE "1" AND JOHN DOE "2",Plaintiff designates Bronx
County as the place of trial.The basis of venue is the
location of the incident.Defendants.
-----X

To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: Hempstead, NY
March 12, 2013

Yours, etc.,

WHITE, CIRRITO & NALLY, LLP

By: 

CHRISTOPHER M. LYNCH, ESQ.

Attorneys for Plaintiff
58 Hilton Avenue
Hempstead, NY 11550
(516) 292-1818

Defendants' addresses:

THE CITY OF NEW YORK
Office of the New York City Comptroller
1 Centre Street
New York, New York 100072013 MAR 18 11:00 AM
NYSCEF
CLERK2013 MAR 18 11:00 AM
NYSCEF
CLERK

NEW YORK CITY DEPARTMENT OF CORRECTION**75-20 Astoria Boulevard****East Elmhurst, New York 11370****CORRECTION OFFICER CAPTAIN NORTON (first name unknown)****c/o New York City Department of Correction****75-20 Astoria Boulevard****East Elmhurst, New York 11370****CORRECTION OFFICER T. JONES****c/o New York City Department of Correction****75-20 Astoria Boulevard****East Elmhurst, New York 11370****CORRECTION OFFICERS JOHN DOE "1" and JOHN DOE "2"****c/o New York City Department of Correction****75-20 Astoria Boulevard****East Elmhurst, New York 11370****NEW YORK CITY POLICE DEPARTMENT****Legal Bureau****One Police Plaza****New York, New York 10038****POLICE OFFICER ORTIZ (first name unknown)****c/o New York City Police Department****Legal Bureau****One Police Plaza****New York, New York 10038****POLICE OFFICERS JOHN DOE "1" and JOHN DOE "2"****c/o New York City Police Department****Legal Bureau****One Police Plaza****New York, New York 10038**

NOTICE: The nature of this action is false and unlawful imprisonment, intentional infliction of severe emotional distress and mental anguish, negligent infliction of emotional distress, violation of Civil Rights, malicious prosecution, abuse of process, violation of 42 U.S.C. § 1983 et seq., battery, damage to property, negligence, negligent hiring, negligent training, and negligent supervision.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
EDWIN CARTAGENA,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, THE NEW YORK
CITY DEPARTMENT OF CORRECTION, POLICE
OFFICER ORTIZ (first name unknown), POLICE
OFFICERS JOHN DOE "1" and JOHN DOE "2",
CORRECTION OFFICER CAPTAIN NORTON
(first name unknown), CORRECTION OFFICER
T. JONES and CORRECTION OFFICERS JOHN
DOE "1" AND JOHN DOE "2",Defendants.
-----X

Index No.:

Date Purchased:

VERIFIED COMPLAINT2013 MAR 18 5:11:15
CLERK OF THE
CITY OF NEW YORK

Plaintiff, by his attorneys, WHITE, CIRRITO & NALLY, LLP, upon information and belief and at all times hereinafter mentioned, alleges against the Defendants as follows:

1. The Plaintiff EDWIN CARTAGENA is a natural person and was at all times mentioned herein and continues to be a resident of the City of New York, County of Bronx, State of New York.
2. Upon information and belief, the Defendant, CITY OF NEW YORK ("CITY"), was at all times mentioned herein and still is a municipal corporation, duly organized and existing by virtue of the laws of the State of New York, with its City Hall located at City Hall Park, City of New York, County of New York, State of New York, and with the office of The Comptroller of the City of New York located at Municipal Building - Room 1225, 1 Centre Street, City of New York, County of New York, State of New York.
3. Upon information and belief, the NEW YORK CITY POLICE DEPARTMENT ("NYPD") is a law enforcement agency maintained, controlled and employed by Defendant CITY to enforce the law, and its headquarters are located at One Police Plaza, City of New York, County of New York, State of New York.

4. Upon information and belief, Defendant THE NEW YORK CITY DEPARTMENT OF CORRECTION ("CORRECTIONS") was at all times herein and still is a municipal department maintained, controlled and employed by Defendant CITY to run, maintain and control correctional facilities located in Defendant CITY, and its headquarters is located at 75-20 Astoria Boulevard, City of New York, County of Queens, State of New York.

5. Upon information and belief, Defendant POLICE OFFICER ORTIZ (first name unknown) (herein "PO ORTIZ"), was at all times herein and still is a duly appointed, employed and acting officer, agent, servant and/or employee of Defendant CITY, more specifically as a uniformed police officer of Defendant NYPD, has a business address of 45th Precinct, 2877 Barkley Avenue, City of New York, County of Bronx, State of New York, and is being sued in both his individual and official capacities.

6. Upon information and belief, Defendants POLICE OFFICER JOHN DOE "1" and POLICE OFFICER JOHN DOE "2" (herein "PO DOE 1" and "PO DOE 2", respectively), whose real names are currently unknown but who were present when the Plaintiff was pulled over while lawfully driving his automobile as discussed herein, were at all times herein and still are duly appointed, employed and acting officers, agents, servants and/or employees of Defendant CITY, more specifically as uniformed police officers of Defendant NYPD, have a business address of 45th Precinct, 2877 Barkley Avenue, City of New York, County of Bronx, State of New York, and are being sued in both their individual and official capacities.

7. Upon information and belief, Defendant CORRECTION OFFICER CAPTAIN NORTON (first name unknown) (herein "CO NORTON"), was at all times herein and still is a duly appointed, employed and acting officer, agent, servant and/or employee of Defendant CITY, more specifically as a corrections officer of the Defendant CORRECTIONS, has a business address of Vernon C. Bain Center, 1 Halleck Street, City of New York, County of Bronx, State of New York, and is being sued in both his individual and official capacities.

8. Upon information and belief, Defendant CORRECTION OFFICER T. JONES ("CO JONES") was at all times herein and still is a duly appointed, employed and acting officer, agent, servant and/or employee of Defendant CITY, more specifically as a corrections officer of the Defendant CORRECTIONS, has a business address of Vernon C. Bain Center, 1 Halleck Street, City of New York, County of Bronx, State of New York, and is being sued in both his individual and official capacities.

9. Upon information and belief, Defendants CORRECTION OFFICER JOHN DOE "1" and CORRECTION OFFICER JOHN DOE "2" (herein "CO DOE 1" and "CO DOE 2", respectively) were at all times herein and still are duly appointed, employed and acting officers, agents, servants and/or employees of Defendant CITY, more specifically as corrections officers of the Defendant CORRECTIONS, have a business address of Vernon C. Bain Center, 1 Halleck Street, City of New York, County of Bronx, State of New York, and are being sued in both their individual and official capacities.

FACTUAL BACKGROUND

10. On or about April 19, 2012, at approximately 1:30 P.M., Plaintiff EDWIN CARTAGENA was lawfully driving on the public roadway known as Westchester Avenue, in the City of New York, County of Bronx, State of New York.

11. While lawfully driving on Westchester Avenue Plaintiff was pulled over by NYPD officers, specifically Defendants PO ORTIZ, PO DOE 1 and PO DOE 2.

12. Plaintiff pulled to the side of the road as directed and was cooperative with the Defendants who had caused him to stop.

13. PO ORTIZ issued Plaintiff a summons by which the claimed reason for the stop of Plaintiff was apparently that Plaintiff was playing music from his automobile too loud in violation of Section 24-244 of the New York City Administrative Code.

14. After stopping Plaintiff, Defendants PO ORTIZ, PO DOE 1 and PO DOE 2 informed Plaintiff there was an open warrant for his arrest. The warrant had been issued by the

Court because the Plaintiff inadvertently failed to pay a Court surcharge of approximately \$75.00 when he paid the fine for a violation.

15. Plaintiff was then arrested, violently handcuffed and forcibly brought to the NYPD 45th Precinct, where he was put in a holding cell at approximately 1:45 P.M. on April 19, 2012.

16. Upon information and belief, the Plaintiff's automobile was also confiscated at the time of Plaintiff's arrest.

17. Upon information and belief, the Plaintiff's wife came to the 45th Precinct to collect Plaintiff's belongings at approximately 5:20 P.M. on April 19, 2012.

18. Upon information and belief, at approximately 5:20 P.M. the Plaintiff's wife saw an unknown police officer driving Plaintiff's automobile though it had been confiscated hours before and should have been in safekeeping.

19. Upon information and belief, when Plaintiff's wife was attempting to collect Plaintiff's belongings, NYPD officers were rude, discourteous, falsely told Plaintiff's wife that the Plaintiff's girlfriend had already picked up Plaintiff's belongings, and would not allow Plaintiff's wife to collect said belongings.

20. Plaintiff was not brought before a judge on April 19, 2012, and at approximately 8:00 P.M. on April 19, 2012, the Plaintiff was transferred to the Vernon C. Bain Center.

21. While being held in the Vernon C. Bain Center the Plaintiff was ordered by Defendants CO JONES, CO NORTON, CO DOE 1 and CO DOE 2 to consent to a strip search.

22. The Plaintiff refused to consent to a strip search.

23. At approximately 4:00 A.M. on April 20, 2012, Plaintiff was brought into a separate cell at VCBC and viciously beaten by Defendants CO JONES, CO NORTON, CO DOE 1 and CO DOE 2; specifically, the aforesaid Defendants attempted to force Plaintiff to bend over and when Plaintiff refused Plaintiff was struck by the Defendants in the kidney and/or back, Plaintiff's head was then pushed forward into a wall while Plaintiff's arms were held behind his

back, and Plaintiff was kicked in the face around the eye by said officers while he was on the ground.

24. Then, while Plaintiff was lying on the ground, one of the Correction Officer Defendants brought other inmates into the cell, showed the Plaintiff to the other inmates and informed the other inmates that they would suffer a similar fate if they did not cooperate with the Correction Officers.

25. After Plaintiff was able to return to his feet he asked to see a doctor in the infirmary but Plaintiff's request was denied.

26. The Correction Officer Defendants required that the Plaintiff be strip searched, and the Plaintiff was then strip searched by the Correction Officer Defendants without proper cause or consent.

27. Upon completion of the strip search Plaintiff was then taken to Court without ever being given the opportunity to see a doctor.

28. As a result of the excessive and unlawful force employed against Plaintiff by the Correction Officer Defendants, Plaintiff was caused to suffer serious, permanent personal injury, including, but not limited to, concussion, contusions, lacerations, emotional distress, embarrassment, mental anguish and anxiety, and humiliation.

29. As a result of the conduct of all Defendants, Plaintiff was caused to incur legal expenses including attorney's fees, Plaintiff was prevented from attending to his necessary affairs, and suffered injury to his good name, reputation and credit, all to his damage.

30. Plaintiff also suffered damage to property in that Plaintiff's automobile was damaged while in Police custody.

31. The Summons issued to Plaintiff by PO ORTIZ on April 19, 2012, for allegedly violating New York City Administrative Code §24-244 was eventually dismissed.

PROCEDURAL HISTORY

32. Prior to the commencement of this action, Plaintiff, in accordance with the provisions of the laws of the State of New York, served a duly verified Notice of Claim and intention to sue, in writing, upon the Defendants CITY, NYPD, and CORRECTIONS on or about the 3rd day of July, 2012, and that said Notice was served within ninety (90) days of the occurrence herein.

33. On or about August 27, 2012, a 50-h Hearing of Plaintiff was held at the offices of Billig Law, P.C.

34. That no physical examination of the Plaintiff has been requested by the Defendants.

35. That more than thirty (30) days have elapsed since Plaintiff complied with Defendants' demand to conduct a 50-h Hearing and that said claim remains unadjusted and that the Defendants have wholly refused, failed and neglected to make any adjustments of same.

36. That this action is being commenced within one year and ninety days of the date of the respective occurrence herein.

**AS AND FOR A FIRST CAUSE OF ACTION:
UNREASONABLE SEARCH AND SEIZURE**

37. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 36 as if fully set forth herein.

38. That at all times mentioned herein prior to the stop of Plaintiff by Defendants PO ORTIZ, PO DOE 1 and PO DOE 2, the Plaintiff was lawfully driving his automobile along a public thoroughfare.

39. That the Defendants PO ORTIZ, PO DOE 1 and PO DOE 2 had no reason to initiate a stop of Plaintiff.

40. That Defendants' PO ORTIZ, PO DOE 1 and PO DOE 2 stopped the Plaintiff for an alleged violation of New York City Administrative Code §24-244, the Summons issued to Plaintiff containing the description of offense "Noise sound reproduction device".

41. That the Plaintiff did not violate New York City Administrative Code §24-244 at any time herein mentioned as Plaintiff did not operate, use, or cause to be operated or used a sound reproduction device in such a manner as to create unreasonable noise.

42. That Defendants' PO ORTIZ, PO DOE 1 and PO DOE 2 stop of Plaintiff was done to harass, annoy and intimidate Plaintiff, and was a pretext so they could run Plaintiff's license plate number through the NYPD database in search of any open warrants linked to Plaintiff.

43. Defendants' PO ORTIZ, PO DOE 1 and PO DOE 2 lacked reasonable suspicion or probable cause to stop and seize Plaintiff, but did without reasonable suspicion or probable cause illegally, improperly and unlawfully stop and seize Plaintiff in contravention of the Fourth Amendment to the United States Constitution and Article I Section 12 of the New York State Constitution.

44. The actions of PO ORTIZ, PO DOE 1 and PO DOE 2 resulted from and were taken pursuant to a *de facto* policy of Defendant CITY.

45. The existence of such a *de facto* policy has been known to the supervisory policy making employees of the Defendant CITY for a substantial period of time.

46. Despite their knowledge of the illegal policies and practices, the supervisory and policy making employees of the Defendant CITY have not, as a matter of policy, taken steps to terminate said practices, have not disciplined or otherwise properly supervised the individual police officers who engaged in said practices, have not effectively trained police officers with regard to proper constitutional and statutory limits on the exercise of their authority and have, instead, sanctioned the policy and practices described previously through their deliberate indifferences to the effect such policies and practices upon the constitutional rights of Plaintiff herein and the residents and visitors of the Defendant CITY.

47. That the said Defendants PO ORTIZ, PO DOE 1 and PO DOE 2 were acting as employees of the Defendants CITY and NYPD within the scope of their employment and and

under color of the statutes, ordinances, customs and usage of the State of New York, the CITY, and NYPD when said Defendants without reasonable suspicion or probable cause illegally, improperly and unlawfully stopped and seized Plaintiff.

48. As a direct and proximate result of the violation of Plaintiff's rights by the Defendants, Plaintiff suffered general and special damages as alleged in this Complaint and is entitled to relief pursuant to 42 U.S.C. § 1983 as against Defendants PO ORTIZ, PO DOE 1 and PO DOE 2 individually, and as against Defendants CITY and NYPD pursuant to the doctrine of respondeat superior, and as against Defendant CITY under 42 U.S.C. § 1983 and the Fourth Amendment to the United States Constitution for having sanctioned and caused a violation of Plaintiff's rights.

49. By reason of the foregoing, the Plaintiff EDWIN CARTAGENA, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION:
DEPRIVATION OF DUE PROCESS**

50. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 49 as if fully set forth herein.

51. Upon information and belief, Defendants PO ORTIZ, PO DOE 1 and PO DOE 2 arrested Plaintiff pursuant to a bench warrant issued by the Criminal Court of Bronx County.

52. Upon Plaintiff's arrest, the said Defendants had a duty to without unnecessary delay bring the Plaintiff before the court in which said bench warrant was returnable.

53. Plaintiff's arrest took place at approximately 1:30 P.M. on Thursday, April 19, 2012.

54. Upon information and belief, Thursday, April 19, 2012 was not a Court holiday and the Courts of the State of New York were open and operating.

55. The said Defendants, upon Plaintiff's arrest pursuant to a bench warrant, rather than bringing Plaintiff before the Court without unnecessary delay put Plaintiff in a holding cell

and left him there until approximately 8:00 P.M., at which time Plaintiff was transferred to a different holding facility.

56. Upon information and belief, Plaintiff was not brought before the Court until approximately 12:00 P.M. on Friday, April 20, 2012.

57. The said Defendants deprived Plaintiff of his liberty without due process in violation of the Fifth Amendment and Fourteenth Amendment to the United States Constitution, and in violation of Article I Section 6 of the New York State Constitution.

58. That the said Defendants PO ORTIZ, PO DOE 1 and PO DOE 2 were acting as employees of the Defendants CITY and NYPD within the scope of their employment and under color of the statutes, ordinances, customs and usage of the State of New York, the CITY, and NYPD when said Defendants deprived Plaintiff of his liberty without due process of law and failed to bring him before the Court without unnecessary delay.

59. The actions of PO ORTIZ, PO DOE 1 and PO DOE 2 resulted from and were taken pursuant to a *de facto* policy of Defendant CITY.

60. The existence of such a *de facto* policy has been known to the supervisory policy making employees of the Defendant CITY for a substantial period of time.

61. Despite their knowledge of the illegal policies and practices, the supervisory and policy making employees of the Defendant CITY have not, as a matter of policy, taken steps to terminate said practices, have not disciplined or otherwise properly supervised the individual police officers who engaged in said practices, have not effectively trained police officers with regard to proper constitutional and statutory limits on the exercise of their authority and have, instead, sanctioned the policy and practices described previously through their deliberate indifference to the effect such policies and practices upon the constitutional rights of Plaintiff herein and the residents and visitors of the Defendant CITY.

62. As a direct and proximate result of the violation of Plaintiff's rights by the Defendants, Plaintiff suffered general and special damages as alleged in this Complaint and is

entitled to relief pursuant to 42 U.S.C. § 1983 as against Defendants PO ORTIZ, PO DOE 1 and PO DOE 2 individually, and as against Defendants CITY and NYPD pursuant to the doctrine of respondeat superior and as against Defendant CITY under 42 U.S.C. § 1983 and the Fifth and Fourteenth Amendments to the United States Constitution for having sanctioned and caused a violation of Plaintiff's rights.

63. By reason of the foregoing, the Plaintiff EDWIN CARTAGENA, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION
UNLAWFUL IMPRISONMENT**

64. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 63 as if fully set forth herein.

65. Upon information and belief, Defendants PO ORTIZ, PO DOE 1 and PO DOE 2 arrested Plaintiff pursuant to a bench warrant issued by the Criminal Court of Bronx County.

66. Upon Plaintiff's arrest, the said Defendants had a duty to without unnecessary delay bring the Plaintiff before the court in which said bench warrant was returnable.

67. Plaintiff's arrest took place at approximately 1:30 P.M. on Thursday, April 19, 2012.

68. Upon information and belief, Thursday, April 19, 2012 was not a Court holiday and the Courts of the State of New York were open and operating.

69. The said Defendants, upon Plaintiff's arrest pursuant to a bench warrant, rather than bringing Plaintiff before the Court without unnecessary delay put Plaintiff in a holding cell and left him there until approximately 8:00 P.M., when Plaintiff was transferred to a different holding facility, to wit, the Vernon C. Bain Center.

70. Upon information and belief, Plaintiff was not brought before the Court until approximately 12:00 P.M. on Friday, April 20, 2012, at which time the Court ordered the immediate release of Plaintiff.

71. That the Plaintiff was not immediately released and was released at approximately 8:00 P.M. on Friday, April 20, 2012.

72. That the Plaintiff was unlawfully imprisoned in that he was not brought before the Court without unnecessary delay as required by law and as a result was imprisoned from approximately 1:45 P.M. on Thursday, April 19, 2012 until approximately 8:00 P.M. on Friday, April 20, 2012.

73. The Plaintiff was aware of his imprisonment at all times mentioned herein.

74. That the said Defendants PO ORTIZ, PO DOE 1 and PO DOE 2 were acting as employees of the Defendants CITY and NYPD within the scope of their employment and under color of the statutes, ordinances, customs and usage of the State of New York, the CITY, and NYPD when said Defendants caused Plaintiff to be imprisoned rather than bring him before the Court without unnecessary delay.

75. As a direct and proximate result of the violation of Plaintiff's rights by the Defendants, Plaintiff suffered general and special damages as alleged in this Complaint and is entitled to relief pursuant to the common law of the State of New York as against Defendants PO ORTIZ, PO DOE 1 and PO DOE 2 individually, and as against Defendants CITY and NYPD pursuant to the doctrine of respondeat superior.

76. By reason of the foregoing, the Plaintiff EDWIN CARTAGENA, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

77. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 76 as if fully set forth herein.

78. That the aforesaid actions and conduct of Defendants PO ORTIZ, PO DOE 1 and PO DOE 2 were intentional.

79. That as a result of said intentional actions, the Plaintiff sustained severe emotional harm and psychological and mental distress and anxiety and continues to suffer from same.

80. That the said Defendants engaged in said actions and conduct with the intent of causing Plaintiff emotional harm and psychological and mental distress and anxiety.

81. That the actions and conduct of said Defendants shocks the conscience.

82. That the said Defendants PO ORTIZ, PO DOE 1 and PO DOE 2 were acting as employees of the Defendants CITY and NYPD within the scope of their employment and in furtherance of the objectives of said employers when said Defendants engaged in the aforesaid actions and conduct toward Plaintiff.

83. As a direct and proximate result of the intentional infliction of emotional distress on Plaintiff, Plaintiff has suffered general and special damages as alleged in this Complaint and is entitled to relief pursuant to the common law of the State of New York as against Defendants PO ORTIZ, PO DOE 1 and PO DOE 2 individually, and as against Defendants CITY and NYPD pursuant to the doctrine of respondeat superior.

84. By reason of the foregoing, the Plaintiff EDWIN CARTAGENA, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION:
NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS**

85. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 84 as if fully set forth herein.

86. The aforesaid actions and conduct of Defendants PO ORTIZ, PO DOE 1 and PO DOE 2 were the result of said Defendants' negligence.

87. That as a result of the negligence of said Defendants, this Plaintiff was caused to sustain severe emotional harm and psychological and mental distress and anxiety and continues to suffer from same.

88. The negligence and carelessness of the said Defendants consisted of unlawfully stopping and seizing Plaintiff for an alleged violation of a law which had not been violated, placing Plaintiff in holding, failing to bring Plaintiff before the Court without unnecessary delay, and for continuing to hold Plaintiff for approximately eight (8) hours after the Court released Plaintiff.

89. That the said Defendants PO ORTIZ, PO DOE 1 and PO DOE 2 were acting as employees of the Defendants CITY and NYPD within the scope of their employment and in furtherance of the objectives of said employers when said Defendants engaged in the aforesaid actions and conduct toward Plaintiff.

90. As a direct and proximate result of the negligent infliction of emotional distress on Plaintiff, Plaintiff has suffered general and special damages as alleged in this Complaint and is entitled to relief pursuant to the common law of the State of New York as against Defendants PO ORTIZ, PO DOE 1 and PO DOE 2 individually, and as against Defendants CITY and NYPD pursuant to the doctrine of respondeat superior.

91. By reason of the foregoing, the Plaintiff EDWIN CARTAGENA, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION: BATTERY

92. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 91 as if fully set forth herein.

93. That the Defendants CO JONES, CO NORTON, CO DOE 1 and CO DOE 2 did perpetrate a battery against Plaintiff by causing Plaintiff to endure unwanted touching without Plaintiff's consent.

94. Said unwanted touching consisted the aforesaid Defendants' attempt to force Plaintiff to bend over and subsequent striking of Plaintiff by the Defendants in the kidney and/or back when Plaintiff refused, the pushing of Plaintiff's head into a wall while Plaintiff's arms

were held behind his back, kicking Plaintiff in the face around the eye by said Defendants while he was on the ground, and strip searching Plaintiff.

95. That the said Defendants CO JONES, CO NORTON, CO DOE 1 and CO DOE 2 were acting as employees of the Defendants CITY and CORRECTIONS within the scope of their employment and in furtherance of the objectives of said employers when said Defendants engaged in the aforesaid actions and conduct toward Plaintiff.

96. As a direct and proximate result of the battery perpetrated on Plaintiff, Plaintiff has suffered general and special damages as alleged in this Complaint and is entitled to relief pursuant to the common law of the State of New York as against Defendants CO JONES, CO NORTON, CO DOE 1 and CO DOE 2 individually, and as against Defendants CITY and CORRECTIONS pursuant to the doctrine of respondeat superior.

97. By reason of the foregoing, the Plaintiff EDWIN CARTAGENA, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION:
UNREASONABLE SEARCH AND SEIZURE**

98. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 97 as if fully set forth herein.

99. That at all times mentioned herein, the Defendants CO JONES, CO NORTON, CO DOE 1 and CO DOE 2 lacked reasonable suspicion that Plaintiff was concealing a weapon or other contraband based on the crime charged.

100. That at all times mentioned herein, there were no particular characteristics of Plaintiff that would support a reasonable suspicion that Plaintiff was concealing a weapon or other contraband.

101. That at all times mentioned herein, the circumstances of Plaintiff's arrest did not support a reasonable suspicion that Plaintiff was concealing a weapon or other contraband.

102. That at all times mentioned herein, the Defendant CORRECTIONS had a policy or practice of subjecting all newly-arrived pre-trial detainees to a strip search irrespective of the offense charged.

103. That at all times mentioned herein, the Defendant CORRECTIONS had a policy or practice of subjecting all newly-arrived pre-trial detainees to a strip search irrespective of the characteristics of the arrestee.

104. That at all times mentioned herein, the Defendant CORRECTIONS had a policy or practice of subjecting all newly-arrived pre-trial detainees to a strip search irrespective of the individualized reasonable suspicion that the arrestee was in possession of drugs, weapons or contraband.

105. Plaintiff was arrested based on a bench warrant that was issued because Plaintiff mistakenly failed to pay a Court surcharge of approximately \$70.00.

106. The Defendants CO JONES, CO NORTON, CO DOE 1 and CO DOE 2 violated Plaintiff's right to be free from unreasonable search and seizure when said Defendants strip searched Plaintiff.

107. Defendants' CO JONES, CO NORTON, CO DOE 1 and CO DOE 2 lacked reasonable suspicion or probable cause to strip search Plaintiff, but did without reasonable suspicion or probable cause illegally, improperly and unlawfully strip search Plaintiff in contravention of the Fourth Amendment to the United States Constitution and Article I Section 12 of the New York State Constitution.

108. That the said Defendants CO JONES, CO NORTON, CO DOE 1 and CO DOE 2 were acting as employees of the Defendants CITY and CORRECTIONS within the scope of their employment and under color of the statutes, ordinances, customs and usage of the State of New York, the CITY, and NYPD and pursuant to a policy or practice maintained by Defendants CITY and CORRECTIONS when said Defendants without reasonable suspicion or probable cause illegally, improperly and unlawfully strip searched Plaintiff.

109. As a direct and proximate result of the violation of Plaintiff's rights by the Defendants, Plaintiff suffered general and special damages as alleged in this Complaint and is entitled to relief pursuant to 42 U.S.C. § 1983 as against CO JONES, CO NORTON, CO DOE 1 and CO DOE 2 individually, and as against Defendants CITY and CORRECTIONS pursuant to the doctrine of respondeat superior, and as against Defendant CITY under 42 U.S.C. § 1983 and the Fourth Amendment to the United States Constitution for having sanctioned and caused a violation of Plaintiff's rights..

110. By reason of the foregoing, the Plaintiff EDWIN CARTAGENA, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A EIGHTH CAUSE OF ACTION:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

111. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 110 as if fully set forth herein.

112. That the aforesaid actions and conduct of Defendants CO JONES, CO NORTON, CO DOE 1 and CO DOE 2 were intentional.

113. That as a result of said intentional actions, the Plaintiff sustained severe emotional harm and psychological and mental distress and anxiety and continues to suffer from same.

114. That the said Defendants engaged in said actions and conduct with the intent of causing Plaintiff emotional harm and psychological and mental distress and anxiety.

115. That the actions and conduct of said Defendants shocks the conscience.

116. That the said Defendants CO JONES, CO NORTON, CO DOE 1 and CO DOE 2 were acting as employees of the Defendants CITY and CORRECTIONS within the scope of their employment and in furtherance of the objectives of said employers when said Defendants engaged in the aforesaid actions and conduct toward Plaintiff.

117. As a direct and proximate result of the intentional infliction of emotional distress on Plaintiff, Plaintiff has suffered general and special damages as alleged in this Complaint and

is entitled to relief pursuant to the common law of the State of New York as against Defendants CO JONES, CO NORTON, CO DOE 1 and CO DOE 2 individually, and as against Defendants CITY and CORRECTIONS pursuant to the doctrine of respondeat superior.

118. By reason of the foregoing, the Plaintiff EDWIN CARTAGENA, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A NINTH CAUSE OF ACTION:
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

119. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 118 as if fully set forth herein.

120. The aforesaid actions and conduct of Defendants CO JONES, CO NORTON, CO DOE 1 and CO DOE 2 were the result of said Defendants' negligence.

121. That as a result of the negligence of said Defendants, this Plaintiff was caused to sustain severe emotional harm and psychological and mental distress and anxiety and continues to suffer from same.

122. The negligence and carelessness of the said Defendants consisted of unlawfully strip searching Plaintiff.

123. That the said Defendants CO JONES, CO NORTON, CO DOE 1 and CO DOE 2 were acting as employees of the Defendants CITY and CORRECTIONS within the scope of their employment and in furtherance of the objectives of said employers when said Defendants engaged in the aforesaid actions and conduct toward Plaintiff.

124. As a direct and proximate result of the negligent infliction of emotional distress on Plaintiff, Plaintiff has suffered general and special damages as alleged in this Complaint and is entitled to relief pursuant to the common law of the State of New York as against Defendants CO JONES, CO NORTON, CO DOE 1 and CO DOE 2 individually, and as against Defendants CITY and CORRECTIONS pursuant to the doctrine of respondeat superior.

125. By reason of the foregoing, the Plaintiff EDWIN CARTAGENA, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A TENTH CAUSE OF ACTION:
CRUEL AND UNUSUAL PUNISHMENT**

126. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 125 as if fully set forth herein.

127. That the Defendants CO JONES, CO NORTON, CO DOE 1 and CO DOE 2 did engage in the use of excessive physical force as against Plaintiff in that said Defendants attempted to force Plaintiff to bend over and subsequently struck Plaintiff in the kidney and/or back when Plaintiff refused, pushed of Plaintiff's head into a wall while Plaintiff's arms were held behind his back, kicked Plaintiff in the face around the eye while Plaintiff was being held on the ground, and strip searched Plaintiff.

128. That at all times mentioned herein, Plaintiff had done nothing which would warrant the use of physical force against him at all, let alone in the manner employed by Defendants.

129. That the use of physical force against Plaintiff constitutes cruel and unusual punishment in violation of Plaintiff's rights pursuant to the Eighth Amendment to the United States Constitution, and Article I Section 5 of the New York State Constitution.

130. The actions of CO JONES, CO NORTON, CO DOE 1 and CO DOE 2 resulted from and were taken pursuant to a *de facto* policy of Defendant CITY.

131. The existence of such a *de facto* policy has been known to the supervisory policy making employees of the Defendant CITY for a substantial period of time.

132. Despite their knowledge of the illegal policies and practices, the supervisory and policy making employees of the Defendant CITY have not, as a matter of policy, taken steps to terminate said practices, have not disciplined or otherwise properly supervised the individual police officers who engaged in said practices, have not effectively trained police officers with

regard to proper constitutional and statutory limits on the exercise of their authority and have, instead, sanctioned the policy and practices described previously through their deliberate indifferences to the effect such policies and practices upon the constitutional rights of Plaintiff herein and the residents and visitors of the Defendant CITY.

133. That the said Defendants CO JONES, CO NORTON, CO DOE 1 and CO DOE 2 were acting as employees of the Defendants CITY and CORRECTIONS within the scope of their employment and under color of the statutes, ordinances, customs and usage of the State of New York, the CITY, and NYPD and pursuant to a policy or practice maintained by Defendants CITY and CORRECTIONS when said Defendants engaged in physical force against Plaintiff which constituted cruel and unusual punishment.

134. As a direct and proximate result of the violation of Plaintiff's rights by the Defendants, Plaintiff suffered general and special damages as alleged in this Complaint and is entitled to relief pursuant to 42 U.S.C. § 1983 as against CO JONES, CO NORTON, CO DOE 1 and CO DOE 2 individually, and as against Defendants CITY and CORRECTIONS pursuant to the doctrine of respondeat superior and as against Defendant CITY under 42 U.S.C. § 1983 and the Eighth Amendment to the United States Constitution for having sanctioned and caused a violation of Plaintiff's rights.

135. By reason of the foregoing, the Plaintiff EDWIN CARTAGENA, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR AN ELEVENTH CAUSE OF ACTION: NEGLIGENCE

136. Plaintiff repeats and realleges each and every allegation contained in Paragraphs "1" through "135" inclusive, with the same force and effect as if herein set forth at length.

137. Defendants CITY, CORRECTIONS and NYPD were negligent in failing to institute and/or follow proper regulations and procedures to screen, hire, train, discipline, and supervise the individual Defendants in the discharge of their duties.

138. As a result of said negligence, Plaintiff has and continues to suffer pain, public humiliation, mental and emotional distress. Additionally, Plaintiff has expended legal and other expenses and will be required to incur further sums of money for legal services.

139. Plaintiff has suffered as a result of the negligence of the Defendants CITY, CORRECTIONS and NYPD as to damage to his reputation, character, and property.

140. By reason of the foregoing, the Plaintiff EDWIN CARTAGENA has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A TWELFTH CAUSE OF ACTION: ATTORNEYS FEES

141. Plaintiff repeats and realleges each and every allegation contained in Paragraphs "1" through "140" inclusive, with the same force and effect as if herein set forth at length.

142. Pursuant to 42 U.S.C. § 1988, the prevailing party in an action to enforce 42 U.S.C. § 1983 may be entitled to attorneys fees.

143. As such, Plaintiff is entitled to recover reasonable attorneys fees for this action to enforce Plaintiff's Constitutional and civil rights pursuant to 42 U.S.C. § 1983.

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

- a. On the First Cause of Action in a sum which exceeds the jurisdictional limits of all lower courts;
- b. On the Second Cause of Action in a sum which exceeds the jurisdictional limits of all lower courts;
- c. On the Third Cause of Action in a sum which exceeds the jurisdictional limits of all lower courts;
- d. On the Fourth Cause of Action in a sum which exceeds the jurisdictional limits of all lower courts;
- e. On the Fifth Cause of Action in a sum which exceeds the jurisdictional limits of all lower courts;

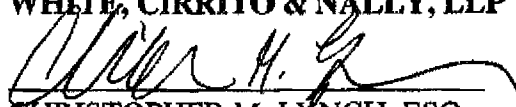
- f. On the Sixth Cause of Action in a sum which exceeds the jurisdictional limits of all lower courts;
- g. On the Seventh Cause of Action in a sum which exceeds the jurisdictional limits of all lower courts;
- h. On the Eighth Cause of Action in a sum which exceeds the jurisdictional limits of all lower courts;
- i. On the Ninth Cause of Action in a sum which exceeds the jurisdictional limits of all lower courts;
- j. On the Tenth Cause of Action in a sum which exceeds the jurisdictional limits of all lower courts;
- k. On the Eleventh Cause of Action in a sum which exceeds the jurisdictional limits of all lower courts;
- l. On the Twelfth Cause of Action for reasonable attorney's fees pursuant to 42 U.S.C. § 1988;
- m. Costs and disbursements of this action; and
- n. Such other and further relief as to this Court deems just and proper.

Dated: Hempstead, NY
March 12, 2013

Yours, etc.,

WHITE, CIRRITO & NALLY, LLP

By:


CHRISTOPHER M. LYNCH, ESQ.

Attorneys for Plaintiff

58 Hilton Avenue

Hempstead, NY 11550

(516) 292-1818

ATTORNEY VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NASSAU)

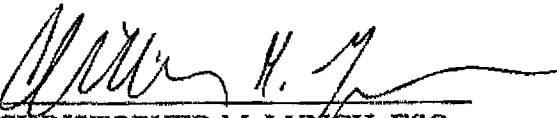
I, the undersigned, am an attorney admitted to practice in the Courts of New York State, and say that:

I, JAMES P. NALLY, am the attorney of record, for the Plaintiff, and I have read the foregoing **COMPLAINT** and know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon the following:

Conversations with the Plaintiff, and books, papers, and records in the possession of this office.

The reason I make this affirmation instead of Plaintiff, is because Plaintiff resides in a County other than that in which affirmant maintains an office.

I affirm that the following statements are true under penalties of perjury.


CHRISTOPHER M. LYNCH, ESQ.

Dated: Hempstead, New York
March 12, 2013

Index Number: 2013-

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
EDWIN CARTAGENA,

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, THE NEW
YORK CITY DEPARTMENT OF CORRECTION, POLICE OFFICER ORTIZ (first name
unknown), POLICE OFFICERS JOHN DOE "1" and JOHN DOE "2", CORRECTION
OFFICER CAPTAIN NORTON (first name unknown), CORRECTION OFFICER T. JONES
and CORRECTION OFFICERS JOHN DOE "1" AND JOHN DOE "2".

Defendants.
-----XSUMMONS and VERIFIED COMPLAINT

WHITE, CIRRITO & NALLY, LLP

Attorneys for Plaintiff

58 Hilton Avenue

Hempstead, New York 11550

Phone: (516) 292-1818 / FAX: (516) 489-1940 (not for service)

To:

Attorneys for:

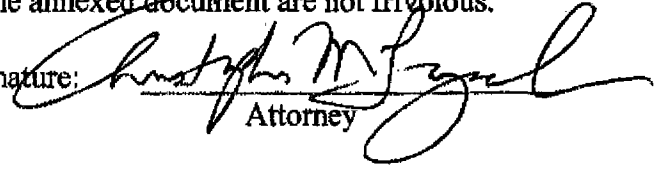
Service of a copy of the within _____
is hereby admitted.

Dated: _____

Attorneys for _____

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney
admitted to practice in the courts of New York State, certifies that,
upon information and belief and reasonable inquiry, the
contentions contained in the annexed document are not frivolous.

Date: 3/12/13

Signature: 

Attorney